NIIT Limited
Registered Office:
Plot No 85, Sector 32,
Institutional Area,
Gurugram 122 001,
(Haryana) India
Tel:+91 (124) 4293000
Fax:+91 (124) 4293333
Email: info@niit.com

CIN: L74899HR1981PLC107123

www.niit.com

October 17, 2025

The Manager
National Stock Exchange of India Limited
Exchange Plaza, Bandra Kurla Complex,
Bandra (E), Mumbai - 400 051

The Manager
BSE Limited
Phiroze Jeejeebhoy Towers, Dalal Street,
Mumbai - 400 001

Sub: Intimation under Regulation 37(6) of the SEBI (Listing Obligations and Disclosure Requirements) Regulations, 2015 in relation to the scheme of amalgamation of NIIT Institute of Finance Banking and Insurance Training Limited and RPS Consulting Private Limited, with and into NIIT Limited and their respective shareholders.

Scrip Code: BSE – 500304; NSE – NIITLTD

Dear Sir(s),

This is further to our letter dated October 9, 2025, wherein we had informed that the Board of Directors of the Company had approved the scheme of amalgamation amongst NIIT Institute of Finance Banking and Insurance Training Limited ("**Amalgamating Company 1**") and RPS Consulting Private Limited ("**Amalgamating Company 2**") (collectively, the "**Amalgamating Companies**"), with and into NIIT Limited ("**Amalgamated Company**" or "**Company**") and their respective shareholders ("**Scheme**"), with an Appointed date as April 01, 2026.

As the Amalgamating Companies are wholly-owned subsidiaries of the Amalgamated Company and in terms of Regulation 37(6) of the SEBI (Listing Obligations and Disclosure Requirements) Regulations, 2015 ("**Listing Regulations**") read with SEBI Master Circular No. SEBI/HO/CFD/POD-2/P/CIR/2023/93 dated June 20, 2023 ("**SEBI Master Circular**"), the requirement of obtaining 'No Objection Letter' from the stock exchanges is not applicable to draft schemes which solely provide for merger of a wholly owned subsidiary with its holding company. However, such draft scheme shall be filed with the stock exchanges for the purposes of disclosures and the stock exchanges shall disseminate the scheme documents on their websites in accordance with the provisions of Listing Regulations and SEBI Master Circular.

Hence, in view of the above, we hereby enclose the following documents:

(i) Scheme of Amalgamation marked as **Annexure A**.

(ii) Certified true copy of the Resolution passed by the Board of Directors of Amalgamating Company 1, Amalgamating Company 2 and Amalgamated Company, inter alia, approving the aforesaid Scheme, marked as **Annexure B**.

The abovementioned documents are for your information and dissemination on your website.

Kindly note that the Amalgamating Companies and the Company shall now proceed with the submission of necessary application(s) in connection with the Scheme with the jurisdictional Hon'ble National Company Law Tribunal.

Thanking you,

Yours truly,
For NIIT Limited

ARPITA BISARIA MALHOTRA
Digitally signed by ARPITA BISARIA MALHOTRA
Date: 2025.10.17 13:25:50 +05'30'

Arpita Bisaria Malhotra
Company Secretary
& Compliance Officer

Encl : a/a

SCHEME OF AMALGAMATION

UNDER SECTIONS 230 TO 232 AND OTHER APPLICABLE PROVISIONS OF THE COMPANIES ACT, 2013

BETWEEN

NIIT INSTITUTE OF FINANCE BANKING & INSURANCE TRAINING LIMITED:	**AMALGAMATING COMPANY 1**

AND

RPS CONSULTING PRIVATE LIMITED:	**AMALGAMATING COMPANY 2**

AND

NIIT LIMITED:	**AMALGAMATED COMPANY**

AND

THEIR RESPECTIVE SHAREHOLDERS

PART I

INTRODUCTION, DEFINITIONS AND INTERPRETATION

1. INTRODUCTION, DEFINITIONS AND INTERPRETATION

1.1 INTRODUCTION

1.1.1 NIIT INSTITUTE OF FINANCE BANKING AND INSURANCE TRAINING LIMITED

(i) NIIT Institute of Finance Banking & Insurance Training (hereinafter referred to as "**Amalgamating Company 1**") is a public limited company incorporated under the Companies Act, 1956 on June 14, 2006. The registered office of the Company is situated at Plot No. 85, Sector-32, Institutional Area, Gurugram, Haryana 122001.

(ii) The Amalgamating Company 1 is focused on training and developing professionals for the Banking, Financial Services, and Insurance (BFSI) sector in India.. The Amalgamating Company 1 is a wholly owned subsidiary of the Amalgamated Company, and qualifies as a material subsidiary in accordance with the applicable SEBI LODR.

(iii) The main objects of the Amalgamating Company 1 as per its memorandum of association are as follows:

1. To carry on the business of imparting instructor led Information Technology assisted training and distance education in the areas of Banking, Finance, Insurance and other related areas including multi-stage assessments and job placements.

2. To carry on the business of promotion, support of education, research and training in the areas of Banking, Finance and Insurance and other related areas.

3. To carry on business of developing training modules for conducting training programmes for professional development and accreditation in experience based learning related to Banking, Finance, Insurance and other related areas.

4. To develop, publish, print, edit, issue and circulate courseware, electronic content, books, journals, circulars, periodicals and other literary undertakings that are related to Banking, Finance, Insurance and other related areas.

5. To engage in providing consultancy services, customized corporate training programmes and end-to-end eLearning solutions to Banks, Insurance Companies and other Financial Services companies and institutions.

(iv) The Amalgamating Company 1 is a wholly owned subsidiary of the Amalgamated Company, and qualifies as a material subsidiary in accordance with the applicable SEBI LODR.

1.1.2 **RPS CONSULTING PRIVATE LIMITED**

(i) RPS Consulting Private Limited (hereinafter referred to as "**Amalgamating Company 2**") is a private limited company incorporated under the Companies Act, 1956 on December 14, 2006. The registered office of the Company is situated at Plot No. 85, Sector-32, Institutional Area, Gurugram, Haryana 122001.

(ii) The Amalgamating Company 2 is a leading enterprise learning services provider of training programs on emerging digital technologies for experienced technology professionals, specifically addressing the needs of Global Systems Integrators (GSIs) and Global Capability Centers (GCCs) of large multinational companies.

(iii) The main objects of the Amalgamating Company as per its memorandum of association are as follows:

1. *To develop, design, manufacture, assemble, maintain, service, repair, alter, convert, import, export and deal in all kinds of Information Technology infrastructure services, software packages, solutions and applications for all sectors including industry, banking, finance, power, media, telecom networking improve, and buy, sell, trade, distribute, all kinds of computer hardwares including systems, peripherals, add-ons, electrical and mechanical systems hardware essentials components, networking products computer accessories and consumables, work systems, devices, communication systems, embedded systems, integrated circuits, electronic.*

2. *To impart technical training, providing consultancy, system Integration and advisory services either directly or other wise as franchisees in computer hardware, software data processing, enterprise resource planning, middleware, net working, medical and legal transcriptions, software, office automation and generally in the field of computer and information technology, general education, technical, personnel, engineering, medical and other areas.*

3. *To carry on the business of human resources service providers, manpower recruitment consultants, placement agents, personnel management consultants, personal data providers, immigration consultants dealing with Information Technology and Financial Services.*

(iv) The Amalgamating Company 2 is a wholly owned subsidiary of the Amalgamated Company, and qualifies as a material subsidiary in accordance with the applicable SEBI LODR.

1.1.3 **NIIT LIMITED**

(i) NIIT Limited (hereinafter referred to as the "**Amalgamated Company**") is a public limited company incorporated under the Companies Act, 1956 on December 2, 1981. The registered office of the Company is situated at Plot No. 85, Sector-32, Institutional Area, Gurugram, Haryana 122001.

(ii) The shares of the Amalgamated Company are, at present, listed on National Stock Exchange of India Limited and BSE Limited.

(iii) The Amalgamated Company is a leading skills & talent development corporation, set up in 1981 to help the nascent IT industry overcome its human resource challenges. A pioneer in the IT and business skilling domain, the Amalgamated Company continues to lead the training and curriculum development in newer technologies such as AI, ML, Data Science etc. Over the years, the Company has expanded its offering to complete suite of technical and soft skills development for its enterprise customers across industries such as Banking, Finance, Retail, Technology and Manufacturing. The Amalgamated Company delivers a diverse range of learning and talent development programs to individuals and corporate learners in futuristic domains through its various businesses.

(iv) The main objects of the Amalgamated Company as per its memorandum of association are as follows:

1. *To carry on the business of rendering management services like staff and management recruitment, skill development, training and placements, technical analysis of data, electronic data processing and to establish and render all consultancy and other professional services of professional and technical nature.*

2. *To run and conduct bureau for computer services and in particular to develop, design, programme, conduct feasibility studies and also to acquire and agency for computers, their repair, maintenance and installation.*

3. *To print, publish, distribute, import, export, sell, buy or otherwise deal in research reports, newsletters, books, pamphlets and other related publications relating to computers and electronics in general.*

4. *To carry on the business of providing and supply of end-to-end Information Technology Solutions, including turnkey solutions, including systems integration of software, computers, peripherals, networking and communication components, cabling, power supply equipment, appropriate fixtures, metering and monitoring devices, conventional and broad-band wireless, wireline and optical communications equipment and to undertake all other related activities.*

5. *To carry on the business of providing solutions and services related to Web-technologies, the Internet and e-Commerce, including but not limited to hosting and application services.*

1.1.4 RATIONALE OF THE SCHEME

The amalgamation of Amalgamating Company 1 and Amalgamating Company 2 with and into the Amalgamated Company pursuant to this Scheme shall be in the interest of all concerned stakeholders, customers, employees and the general public, in the following ways:

(i) **Simplified Structure & Governance and improved Agility :** The amalgamation will simplify the corporate structure by reducing multiple legal entities, thereby enhancing transparency, enabling direct oversight by the Amalgamated Company's management, and improving agility to facilitate quicker decision-making aligned to the strategic goals of Amalgamated Company. Reduction in administrative complexity will transform the Amalgamated Company into a more efficient and effective organization.

(ii) **Cost and Compliance Efficiencies:** The amalgamation will reduce administrative overheads, duplication of records, and legal and regulatory compliances, leading to substantial reduction of administrative cost. Further, release of management bandwidth is expected to help in driving value creation for stakeholders.

(iii) **Consolidation and Growth:** The consolidation of the businesses of the Amalgamating Companies into the Amalgamated Company is expected to result in focused growth, operational efficiencies, and enhanced business synergies.

(iv) **Leveraging Complementary Strengths:** The Amalgamating Companies and the Amalgamated Company have, over time, invested capital and developed distinct competencies. Their integration is expected to enable delivery of a more comprehensive suite of products and services to a combined customer base, thereby enhancing competitiveness in the market.

(v) **Access to Assets, Resources and Talent:** The amalgamation is expected to provide access to a larger pool of financial resources, skilled personnel, and experienced management, thereby strengthening the ability to innovate and offer distinctive solutions in the marketplace. Further, consolidation is expected to facilitate seamless access to the assets including intangible assets, licenses, and intellectual property of each of the Companies, resulting in operational synergies, and optimal utilization of resources and capital.

1.1.5 The Scheme is divided into five parts:

(i) **Part I** sets-forth the Introduction, Definitions and Interpretation;

(ii) **Part II** sets-forth the capital structure of each of the Amalgamating Company 1, Amalgamating Company 2 and Amalgamated Company;

(iii) **Part III** deals with the amalgamation of the each of the Amalgamating Company 1, Amalgamating Company 2 into and with Amalgamated Company, in accordance with sections 230 to 232 of the Act.

(iv) **Part IV** deals with consideration, accounting and tax treatments in the Financial Statements of the Amalgamated Company pursuant to the amalgamation of each of the Amalgamating Company 1, Amalgamating Company 2 into and with Amalgamated Company; and

(v) **Part V** deals with general/residuary terms and conditions.

1.2 DEFINITIONS

1.2.1 "**Amalgamating Company 1**" or "**Transferor Company 1**" means NIIT Institute of Finance Banking and Insurance Training Limited , as defined in Clause 1.1.1 of the Scheme;

1.2.2 "**Amalgamating Company 2**" or "**Transferor Company 2**" means RPS Consulting Private Limited , as defined in Clause 1.1.2 of the Scheme;

1.2.3 "**Amalgamating Companies**" or "**Transferor Companies**" means Amalgamating Company 1 and Amalgamating Company 2, collectively;

1.2.4 "**Amalgamated Company**" or "**Transferee Company**" means NIIT Limited, as defined in Clause 1.1.3 of the Scheme;

1.2.5 "**Applicable Law(s)**" means any statute, law, regulation, ordinance, rule, judgment, order, decree, by-law, approval from the concerned authority, Governmental Authority resolution, order, directive, guideline, policy, requirement, or other governmental restriction or any similar form of decision of, or determination by, or any interpretation or adjudication having the force of law of any of the foregoing, by any concerned authority having jurisdiction over the matter in question;

1.2.6 **"Appointed Date"** means April 1, 2026 or such other date as may be approved by NCLT;

1.2.7 "**Board of Directors**"/ "**Board**" in relation to each of the Amalgamating Company 1, Amalgamating Company 2 and the Amalgamated Company, as the case may be, means the board of directors and shall, unless it be repugnant to the context or otherwise, include a committee of directors or any person authorized by the board of directors or such committee as may be constituted by the board of directors;

1.2.8 "**Clause**" and "**sub-Clause**" means the relevant clauses and sub-clauses of this Scheme;

1.2.9 "**Companies Act**" or **"the Act"** means the Companies Act, 2013 and the rules made thereunder, and includes any alterations, modifications and amendments made thereto and/or any re-enactment thereof;

1.2.10 "**Effective Date**" means the date on which the Scheme shall become effective pursuant to Clause 9 of the Scheme. Any references in this Scheme to "upon this Scheme becoming effective" or "effectiveness of this Scheme" or "after this Scheme becomes effective" means and refers to the Effective Date;

1.2.11 "**Employees**" has the meaning set out in Clause 3.4.1 of the Scheme;

1.2.12 "**Financial Statements"** would include stand alone and consolidated accounts;

1.2.13 "**Governmental Authority**" means any government authority, statutory authority, government department, agency, commission, board, tribunal or court or other law, rule or regulation making entity having or purporting to have jurisdiction on behalf of the Republic of India or any state or other subdivision thereof or any municipality, district or other subdivision thereof;

1.2.14 "**GST**" means the central tax as defined under the Central Goods and Services Tax Act, 2017, the integrated tax as defined under the Integrated Goods and Services Tax Act, 2017, and the state tax as defined under State Goods and Services Tax acts.

1.2.15 "**Income Tax Act**" means the Income Tax Act, 1961 and the rules made thereunder, and includes any alterations, modifications and amendments made thereto and/or any re-enactment thereof;

1.2.16 "**NCLT**" means the National Company Law Tribunal, Chandigarh, to which this scheme of amalgamation in its present form is submitted for its sanctioning under sections 230 to 232 of the Act;

1.2.17 "**Proceedings**" has the meaning set out in Clause 3.5.1 of the Scheme;

1.2.18 "**ROC**" means the relevant Registrar of Companies;

1.2.19 "**SEBI**" means the Securities and Exchange Board of India;

1.2.20 "**SEBI LODR**" means Securities and Exchange Board of India (Listing Obligations and Disclosure Requirements) Regulations, 2015 as amended from time to time;

1.2.21 "**Scheme**" or "**the Scheme**" or "**this Scheme**" means this Scheme of Amalgamation in its present form (along with any annexures, schedules, etc., annexed/attached hereto), with such modifications and amendments as may be made from time to time, and with appropriate approvals and sanctions of the NCLT and other relevant regulatory authorities, as may be required under the Companies Act, as applicable, and under all other applicable laws;

1.2.22 "**Stock Exchanges**" means National Stock Exchange of India Limited and BSE Limited;

1.2.23 "**Undertaking**" means all the business, personnel, property, assets, investments, rights, benefits and interest of a company as a going concern and shall include (without limitation) to the extent applicable:

(i) all movable properties, including hire purchase and lease arrangements, real or personal, corporeal or incorporeal or otherwise, present, future, contingent, tangible or intangible, and associated capital costs, plant and equipment, furniture and fixtures, office equipment, vehicles, capital work in progress, trade receivables, advances, derivative contracts, inventories, security deposits, prepaid expenses, contract assets, title, interest, cash and bank balances, bills of exchange, or other financial or non-financial assets, funds, and all other services of every kind, nature and description whatsoever and all the rights, title, interests, goodwill, benefits, fiscal incentives, entitlement and advantages, contingent rights or benefits;

(ii) all immovable properties, including the land together with buildings and structures standing thereon (whether freehold, if any, or leasehold, on leave and license, with right of use, rights of way, tenancies, authorizations, permissions or otherwise) including offices, benefits of any rental agreement for any use of premises which immovable properties are currently in use and all documents of title, rights and easements in relation thereto and all rights, covenants, continuing rights, title and interests in connection with the said immovable properties;

(iii) all of assets, whether movable or immovable, whether present or future, whether tangible or intangible, leasehold or freehold, all rights, title, interests, covenants, undertakings, liabilities, together with all present and future liabilities including contingent liabilities and debts appertaining thereto;

(iv) all loans and advances (including inter-corporate loans), including accrued interest thereon, receivables, funds, cash, bank balances, investments, accounts, and all other rights, benefits of all agreements, subsidies, grants, incentives, , tax credits (including but not limited to credits in respect of income-tax, minimum alternate tax i.e. tax on book profits, value added tax, sales tax, service tax/ Goods and Service Tax), Goods and Service Tax etc., tax benefits, bills of exchange, letters of intent;

(v) all investments in the capital of other companies, whether as shares, scrips, stocks, bonds, debentures, debenture stocks, units, treasury investment, mutual funds or pass through certificates including dividends declared and all the benefits attributable thereto under the Applicable Laws;

(vi) all existing and future contracts, agreements, request for proposal, bids, responses to invitation for expression of interest, leases, leave and licenses, memoranda of undertakings, memoranda of agreements, arrangements, undertakings, whether written or otherwise, deeds, bonds, insurance policies, schemes, arrangements, sales orders, purchase orders or other instruments of whatsoever nature and description, if any, whether written, oral or otherwise;

(vii) all permits, licenses, consents, approvals, authorizations, quotas, rights, entitlements, allotments, concessions, exemptions, liberties, advantages, no-objection certificates, certifications including ISO certifications, import-export code, EXIM license, easements, tenancies, privileges and similar rights and any waiver of the foregoing issued by any legislative, executive or judicial unit of any Governmental Authority or semi-Governmental entity or any department, commission, board, agency, bureau, official or other regulatory, administrative or judicial authority;

(viii) any and all secured and unsecured debts, borrowings and liabilities (including contingent liabilities), present or future, undertakings and obligations;

(ix) any and all permanent employees, workmen and staff who are on the pay roll, including those engaged at offices and branches, employees/personnel engaged on contract basis, contract labourers and interns/trainees, including all employee benefits such as provident fund, employees' state insurance, gratuity fund, superannuation fund;

(x) any and all insurance policies;

(xi) all bank accounts, bank balances and deposits, if any, with government, quasi- government, local and other authorities and bodies, customers and other persons;

(xii) all legal, tax, regulatory, quasi-judicial, administrative or other proceedings, suits, appeals, applications or proceedings of whatsoever nature;

(xiii) all intellectual property and intellectual property rights, brands, logos, designs, labels, tradenames and trademarks (including any applications for the same) of any nature whatsoever, including all books, approvals, records, files, papers, process information, computer programs, domain names, software licenses (whether proprietary or otherwise), research and studies, technical knowhow, confidential information and other benefits, drawings, manuals, data, catalogues, quotations, sales and advertising materials, investor credit information, pricing information, and other records whether in physical or electronic form;

(xiv) any and all advance monies, earnest monies and/or security deposits, trade payables, payment against warrants or other entitlements; and

(xv) all necessary books, records, files, papers, list of present and former customers, suppliers, customer pricing information, software licenses (whether proprietary or otherwise), test reports, computer programmes, drawings, manuals, data, databases, catalogues, quotations, sales and advertising materials, product registrations, dossiers, lists of present and former borrowers, lenders and suppliers including service providers, other borrower information - customer credit information, customer/supplier pricing information and other records whether in physical or electronic form.

1.3 INTERPRETATION

1.3.1 The terms “hereof”, “herein”, “hereby”, “hereto” and derivative or similar words used in this Scheme refers to this entire Scheme.

1.3.2 The expressions, which are used in this Scheme and not defined in this Scheme shall, unless repugnant or contrary to the context or meaning hereof, have the same meaning ascribed to them under the Companies Act, the Securities Contracts (Regulation) Act, 1956, the Securities and Exchange Board of India Act, 1992 (including the regulations made there under), the Depositories Act, 1996 and other applicable laws, rules, regulations, guidelines, bye-laws, as the case may be, including any statutory modification or re-enactment thereof, from time to time.

1.4 DATE OF TAKING EFFECT AND OPERATIVE DATE

1.4.1 The Scheme set out herein in its present form or with any modification(s) approved or imposed or directed by the NCLT shall be deemed to be effective from the Appointed Date but shall be operative only from the Effective Date.

PART II

SHARE CAPITAL STRUCTURE

2. **CAPITAL STRUCTURE**

2.1 The share capital of the Amalgamated Company as on September 30, 2025:

Share Capital	Amount in Indian Rupees
Authorized Capital	
41,10,00,000 equity shares of INR. 2/- each	82,20,00,000
35,00,00,000 8.5% cumulative redeemable preference shares of INR 1/- each	35,00,00,000
25,00,000 redeemable preference shares of INR 100/- each	25,00,00,000
Total	**142,20,00,000**
Issued Share Capital	
13,62,88,104 * equity shares of INR 2/- each	27,25,76,208
Total	**27,25,76,208**
Subscribed and paid-up share Capital	
13,62,82,104 equity shares of INR 2/- each	27,25,64,208
Total	**27,25,64,208**

**includes 6000 equity shares forfeited amounting to INR 12,000*

2.2 The share capital of the Amalgamating Company 1 as on September 30, 2025 is as under:

Share Capital	Amount in Indian Rupees
Authorized Capital	
1,10,00,000 equity shares of INR 10/-	11,00,00,000
Total	**11,00,00,000**
Issued, Subscribed and fully paid-up	

1,01,12,500 equity shares of INR 10/-	10,11,25,000.
Total	**10,11,25,000.**

There has been no change in the capital structure of the Amalgamating Company 1 since September 30,, 2025.

2.3 The share capital of the Amalgamating Company 2 as on September 30, 2025 was as under:

Share Capital	**Amount in Indian Rupees**
Authorized Capital	
12,50,000 equity shares of INR 10/-	1,25,00,000
Total	**1,25,00,000**
Issued, Subscribed and fully paid-up	
7,50,000 equity shares of INR 10/-	75,00,000
Total	**75,00,000**

There has been no change in the capital structure of the Amalgamating Company 2 since September 30, 2025.

PART III

AMALGAMATION OF EACH OF AMALGAMATING COMPANY 1 AND AMALGAMATING COMPANY 2 WITH AND INTO THE AMALGAMATED COMPANY

3. THE TRANSFER BY WAY OF AMALGAMATION OF THE AMALGAMATING COMPANIES WITH THE AMALGAMATED COMPANY

Upon the Scheme becoming effective and with effect from the Appointed Date, subject to the provisions of the Scheme, Amalgamating Company 1 and Amalgamating Company 2 shall stand amalgamated into Amalgamated Company and the whole of the Undertaking of the Amalgamating Company 1 and the whole of the Undertaking of the Amalgamating Company 2 shall stand transferred to and be vested in the Amalgamated Company, as a going concern, without any further deed or act, instrument being required from the Amalgamating Companies and / or the Amalgamated Company and without any approval or acknowledgement of any third party, together with all the properties, assets, rights, liabilities, benefits and interest therein, in accordance with Sections 230 to 232 of the Companies Act, Income Tax Act and other Applicable Law, if any.

3.1 TRANSFER OF ASSETS

3.1.1 Upon this Scheme becoming effective, and with effect from the Appointed Date:

(i) all assets of the Undertaking of the Amalgamating Company 1 and Amalgamating Company 2, as are movable in nature or incorporeal property or are otherwise capable of transfer by manual delivery or by endorsement and delivery or by vesting and recordal pursuant to this Scheme, shall stand vested in the Amalgamated Company and shall become the property and an integral part of the Amalgamated Company. The vesting pursuant to this sub-clause shall be deemed to have occurred by manual delivery or endorsement, as appropriate to the property being vested, and title to the property shall be deemed to have been transferred accordingly;

(ii) all movable properties of the Undertaking of the Amalgamating Company 1 and Amalgamating Company 2, other than those specified in sub-clause (i) above, including but not limited to, sundry debts, actionable claims, earnest monies, receivables, bills, credits, loans, advances and deposits, all kind of banking accounts including but not limited to current and saving accounts, term deposits, with any Governmental Authorities or any other bodies and/ or customers or any other person, whether recoverable in cash or in kind or for value to be received, bank balances, if any, shall without any further act, instrument or deed, become the property of the Amalgamated Company;

(iii) all immovable properties of the Undertaking of the Amalgamating Company 1 and Amalgamating Company 2, if any, whether freehold or leasehold, and all documents of title, rights and easements in relation thereto, shall stand transferred to and be vested in and transferred to and/or be deemed to have been and stand transferred to and vested in the Amalgamated Company, without any further act or deed done by the Amalgamating Companies and/or the Amalgamated Company;

(iv) all investments forming part of the Undertaking of the Amalgamating Company 1 and Amalgamating Company 2 including but not limited to, the investments made by the

Amalgamating Companies in the capital of other companies whether as shares, scrips, stocks, bonds, deposits, debentures, debenture stocks, units, mutual funds or pass through certificates and all the benefits attributable thereto under the Applicable Laws, shall stand transferred to and be vested in and transferred to and/or be deemed to have been and stand transferred to and vested in the Amalgamated Company, without any further act or deed done by the Amalgamating Companies and/or the Amalgamated Company;

(v) all statutory permissions, licenses, approvals, consents, privileges, registration or other licenses, benefits and benefits of filings and all other incorporeal rights emanating from such licenses including but not limited to all permits, authorizations, quotas, rights, entitlements, allotments, concessions, exemptions, liberties, advantages, no-objection certificates, certifications, easements, tenancies, privileges and similar rights and any waiver of the foregoing issued by any legislative, executive or judicial unit of any Governmental Authority or semi-Governmental Authority or any department, commission, board, agency, bureau, official or other regulatory, administrative or judicial authority forming part of the Undertaking of the Amalgamating Company 1 and Amalgamating Company 2, required to carry on their operations, shall stand transferred to and be vested in the Amalgamated Company without any further act or deed, and shall, as may be required, be appropriately mutated by the statutory authorities concerned therewith in favor of the Amalgamated Company. The benefit of all statutory and regulatory permissions, approvals and consents of the Amalgamating Companies shall vest in and become available to the Amalgamated Company pursuant to the Scheme;

(vi) any and all registrations, goodwill, licenses appertaining to the Amalgamating Company 1 and Amalgamating Company 2 shall stand transferred to and vested in the Amalgamated Company; and

(vii) all intellectual property rights, including but not limited to, registrations, trademarks, trade names, service marks, computer programmes, manuals, data, copyrights, patents, designs, domain names, applications for trademarks, trade names, trade secrets, copyrights, research and studies, technical know-how, designs and domain names and all software, and all the website contents (including text, graphics, images, audio, video and data) along with any derivatives, enhancements thereof, goodwill, and licenses, whether owned, licensed or otherwise used by or held for use by each of the Undertaking of Amalgamating Company 1 and Amalgamating Company 2 (whether registered or unregistered), thereto shall stand transferred to and be vested in and transferred to and/or be deemed to have been transferred to and vested in the Amalgamated Company. The Amalgamating Companies agree to execute and deliver, at the request of the Amalgamated Company, all relevant documents and instruments required in respect of such intellectual property to vest such rights, title and interest in the name of the Amalgamated Company and in order to update the records of the concerned registries, wherever applicable, to reflect the name and address of the Amalgamated Company as the current owner of the intellectual property.

3.2 **TRANSFER OF LIABILITIES**

3.2.1 Upon this Scheme becoming effective, and with effect from the Appointed Date:

(i) all debts and liabilities including ,but not limited to, guarantees, assurances, commitments and obligations of any nature or description, whether fixed, contingent or absolute, secured or unsecured, asserted or unasserted, matured or unmatured, liquidated or unliquidated, accrued or not accrued, known or unknown, due or to become due, whenever or however

arising, (including, without limitation, whether arising out of any statute, contract or tort based on negligence or strict liability), whether provided for or not in the books of account or disclosed in the balance sheets of each of the Amalgamating Company 1 and Amalgamating Company 2, shall, be deemed to be the debts, liabilities, contingent liabilities, duties and obligations of the Amalgamated Company and the Amalgamated Company undertakes to meet, discharge and satisfy the same. It is hereby clarified that it shall not be necessary to obtain the consent of any third party or other person who is a party to any contract or arrangement by virtue of which such debts, liabilities, duties and obligations have arisen in order to give effect to the provisions of this Clause.

(ii) All existing securities, mortgages, charges, liens or other encumbrances, if any, as on the Appointed Date and created by the Amalgamating Companies after the Appointed Date, over the properties and other assets comprised in the Undertaking transferred to the Amalgamated Company by virtue of this Scheme and in so far as such securities, mortgages, charges, liens or other encumbrances secure or relate to liabilities of the Amalgamating Companies, the same shall, after the Effective Date, continue to relate and attach to such assets or any part thereof to which they are related or attached prior to the Effective Date and as are transferred to the Amalgamated Company, and such securities, mortgages, charges, liens or encumbrances shall not relate or attach to any other assets of the Amalgamated Company, provided however that no encumbrances shall have been created by the Amalgamating Companies over its assets after the date of filing of the Scheme, without the prior written consent of the Board of Directors of the Amalgamated Company, except for those done in the normal course of business.

(iii) All existing encumbrances over the properties and other assets of the Amalgamated Company or any part thereof which relate to the liabilities and obligations of the Amalgamated Company prior to the Effective Date shall continue to relate only to such assets and properties and shall not extend or attach to any of the assets and properties of the Amalgamating Companies transferred to and vested in the Amalgamated Company by virtue of this Scheme.

(iv) Upon the Scheme becoming effective, for statistical purposes only and without any separate deed, instrument or writing, the Amalgamated Company shall, if required, simultaneously with the amendment in the register of charge, file particulars of the modified charge with the ROC and execute necessary documentation with the lenders.

3.3 **TRANSFER OF CONTRACTS**

3.3.1 Upon this Scheme becoming effective, and with effect from the Appointed Date, all existing and future contracts, including but not limited to, agreements, request for proposal, bids, responses to invitation for expression of interest, leases, leave and licences, memoranda of undertakings, memoranda of agreements, arrangements, undertakings, whether written or otherwise, deeds, bonds, insurance policies, schemes, arrangements, sales orders, purchase orders or other instruments of whatsoever nature, in relation to the Undertaking of each ,of the Amalgamating Company 1 and Amalgamating Company 2, respectively, or to the benefit of which, the Amalgamating Company 1 and Amalgamating Company 2 may be eligible and which are subsisting or having effect immediately before the Effective Date, shall be in full force and effect on, against or in favour of the Amalgamated Companies and may be enforced as fully and effectually as if, instead of the Amalgamating Companies, the Amalgamated Company had been a party or beneficiary or obligee thereto.

3.3.2 The Amalgamated Company shall, at any time after the coming into effect of this Scheme in accordance with the provisions hereof, if so required under any law or otherwise, execute deeds of confirmation or novation or other writings or arrangements with any party to any contract or arrangement in relation to which each of the Amalgamating Company 1 and Amalgamating Company 2, respectively, has been a party, in order to give formal effect to the above provisions. The Amalgamated Company shall, under the provisions of this Scheme, be deemed to be authorized to execute any such writings on behalf of each of the Amalgamating Company 1 and Amalgamating Company 2, respectively and to carry out or perform all such formalities or compliances referred to above on the part of each of the Amalgamating Company 1 and Amalgamating Company 2, respectively.

3.3.3 Any *inter-se* contracts between each, of each of the Amalgamating Company 1 and Amalgamating Company 2, respectively and the Amalgamated Company shall stand cancelled and cease to operate upon the effectiveness of this Scheme.

3.4 TRANSFER OF EMPLOYEES

3.4.1 Upon this Scheme becoming effective, and with effect from the Appointed Date, all staff, workmen and employees, who are on the payrolls of each of the Amalgamating Company 1 and Amalgamating Company 2, respectively, employees/personnel engaged on contract basis and contract labourers and interns/trainees of the Amalgamating Companies who are on its payrolls (collectively, "**Employees**") shall be deemed to have become, the employees of the Amalgamated Company, on the same terms and conditions or such terms and conditions as are no less favourable than those on which they are currently engaged by each of the Amalgamating Company 1 and Amalgamating Company 2 respectively, without any break in or interruption of service as a result of this amalgamation and transfer. Services of the Employees shall be taken into account from the date of their respective appointment with the Amalgamating Companies, for the purposes of all retirement benefits and all other entitlements for which they may be eligible.

3.4.2 In addition, the Employees of the Amalgamating Companies who have been granted / vested with employee stock options in the Amalgamated Company, should continue to be eligible to exercise their employee stock options in the Amalgamated Company on the same terms and conditions or such terms and conditions as are no less favourable, and the term of service and performance of the Employees in the Amalgamating Companies should be taken into account by the Amalgamated Company.

3.4.3 Upon this Scheme becoming effective, all contributions including any provisions created thereof, to provident fund, employee state insurance contribution, gratuity fund, superannuation fund, staff welfare scheme, or any other special scheme or, to tax benefits (including medical, pension and leave travel allowance) or any other benefits created or existing exclusively for the benefit of the Employees of each of the Amalgamating Company 1 and Amalgamating Company 2, respectively, shall be made by the Amalgamated Company in accordance with the provisions of such schemes or funds and Applicable Law.

3.4.4 The existing accumulations under provident fund, employee state insurance contribution, gratuity fund, superannuation fund, staff welfare scheme and any other special scheme or benefits of each, of the Amalgamating Company 1 and Amalgamating Company 2, respectively, shall be continued on the same terms and conditions or such terms and conditions as are no less favourable than those on which they are currently engaged by each of the Amalgamating Company 1 and Amalgamating Company 2 respectively, and shall be transferred to, the provident fund, employees' state insurance corporation, gratuity fund, superannuation fund, staff welfare scheme, etc., being maintained by the

Amalgamated Company or as may be created by the Amalgamated Company for such purpose, in accordance with Applicable Law.

3.4.5 In relation to the provident fund contributions being made by Amalgamating Company 1 and Amalgamating Company 2, respectively for the Employees of the Amalgamating Company including with regard to the obligation to make contributions to relevant authorities, such as the Regional Provident Fund Commissioner or to such other funds maintained by Amalgamating Company 1 and Amalgamating Company 2, in accordance with the provisions of Applicable Law, upon this Scheme becoming effective, the Amalgamated Company shall make contributions for such Employees of the Amalgamating Company to either the employee provident fund maintained with the Regional Provident Fund Office in terms of the Employees' Provident Funds and Miscellaneous Provisions Act, 1952, or to fund/trust created, or as may be created, by the Amalgamated Company in this regard. The existing accumulations in the employee provident fund maintained with the Regional Provident Fund Office pertaining to the Employees of the Amalgamating Company 1 and Amalgamating Company 2, shall be transferred to the employee provident fund maintained with the Regional Provident Fund Office, or to fund/trust created, or as may be created, by the Amalgamated Company in this regard, in accordance with Applicable Law.

3.4.6 It is hereby clarified that upon this Scheme becoming effective, the aforesaid benefits or schemes shall continue to be provided to the Employees and the services of all the Employees for such purpose, shall be treated as having been continuous. Upon this Scheme becoming effective, the directors or key managerial personnel of each of the Amalgamating Company 1 and Amalgamating Company 2, respectively will not become directors or key managerial personnel of the Amalgamated Company merely by virtue of the provisions of this Scheme. It is clarified that this Scheme will not affect any directorship or key managerial position of a person who is already a director/ or key managerial personnel in the Amalgamated Company as of the Effective Date, if any.

3.5 LEGAL PROCEEDINGS

3.5.1 Upon this Scheme becoming effective, and with effect from the Appointed Date, all legal, taxation or other proceedings whether civil or criminal including but not limited to suits, summary suits, indigent petitions, assessments, appeals, or other proceedings of whatever nature (hereinafter called the "**Proceedings**"), if any, whether by or against the Amalgamating Company 1 and Amalgamating Company 2, shall not abate or be discontinued or in any way prejudicially be affected by reason of the amalgamation of Amalgamating Company 1 and Amalgamating Company 2 with and into the Amalgamated Company, or of anything contained in this Scheme, but the Proceedings shall continue and any prosecution shall be enforced by or against the Amalgamated Company in the same manner and to the same extent as they would or might have been continued, prosecuted and/or enforced by or against Amalgamating Company 1 and Amalgamating Company 2, as if this Scheme had not been implemented. The Amalgamated Company shall file necessary application for transfer of all such Proceedings relating to the Amalgamating Company 1 and Amalgamating Company 2, subject to Applicable Law.

3.6 BANK ACCOUNTS

3.6.1 Upon this Scheme becoming effective, all bank accounts operated or entitled to be operated by the each of the Amalgamating Company 1 and Amalgamating Company 2 shall be deemed to have transferred and shall stand transferred to the Amalgamated Company and the name of the each of each of the Amalgamating Company 1 and Amalgamating Company 2 shall be substituted by the name of the Amalgamated Company in the bank's records and particulars of the new authorized

signatories for withdrawals and/ or deposits/ credits in such bank accounts shall be reconstituted accordingly.

3.6.2 Upon this Scheme becoming effective, and with effect from the Appointed Date, the Amalgamated Company shall be entitled to operate all bank accounts, realise all monies and complete and enforce all pending contracts and transactions in the name of the each of the Amalgamating Company 1 and Amalgamating Company 2 to the extent necessary until the transfer of the rights and obligations of the each of the Amalgamating Company 1 and Amalgamating Company 2 to the Amalgamated Company under the Scheme is formally accepted and completed by the parties concerned.

3.6.3 For the avoidance of doubt and without prejudice to the generality of the applicable provisions of the Scheme, it is clarified that with effect from the Effective Date and till such time that the name of the bank accounts of the Amalgamating Companies would be replaced with that of the Amalgamated Company, the Amalgamated Company shall be entitled to operate the bank accounts of the Amalgamating Companies in the name of the Amalgamating Companies in so far as may be necessary. All cheques and other negotiable instruments, payments orders, electronic fund transfers (such as NEFT, RTGS, etc.) received or presented for encashment which are in the name of the Amalgamating Companies after the Effective Date shall be accepted by the bankers of the Amalgamated Company and be credited to the account of the Amalgamated Company, if presented by the Amalgamated Company. The Amalgamated Company shall be allowed to maintain bank accounts in the name of the Amalgamating Companies for such time as may be determined to be necessary by the Amalgamated Company for presentation and deposition of cheques and pay orders that have been issued in the name of the Amalgamating Companies.

3.7 BENEFIT OF STATUTORY/CORPORATE APPROVALS

3.7.1 Without prejudice to the generality of the above and upon the Scheme becoming effective, the benefits of any and all corporate approvals, statutory approvals including approval from the audit committee, board of directors and/or shareholders under the provisions of section 177, 180, 185, 186 and 188 and other provisions of the Companies Act, and applicable provisions of the SEBI LODR, as may have already been taken by each of the Amalgamating Company 1 and Amalgamating Company 2, whether being in the nature of compliances or otherwise, shall stand transferred to the Amalgamated Company and the said corporate approvals and compliances shall be deemed to have been complied with by the Amalgamated Company, by virtue of approval of this Scheme and consequently no separate corporate or statutory approvals, including approvals of the audit committee, the board of directors and/or the shareholders, shall be required to be obtained by the Amalgamated Company in respect of the foregoing.

3.7.2 Upon the Scheme becoming effective, all the incentives, subsidies, special status, and other benefits or privileges enjoyed, granted by any Governmental Authority, local authority, or by any other person, or availed by each of the Amalgamating Company 1 and Amalgamating Company 2 shall vest with and be available to the Amalgamated Company on the same terms and conditions.

3.8 CONDUCT OF BUSINESS

3.8.1 With effect from the Appointed Date and until occurrence of the Effective Date:

(i) each of the Amalgamating Company 1 and Amalgamating Company 2 undertakes to carry on and shall be deemed to have carried on all its business activities and stand possessed of

its properties and assets, for and on account of and in trust for the Amalgamated Company; and

(ii) all profits and income accruing or arising to each of the Amalgamating Company 1 and Amalgamating Company 2 and all taxes thereon or losses accumulated or otherwise arising or incurred by it shall, for all purposes, be treated as and deemed to be the profits, taxes or losses, as the case may be, of the Amalgamated Company; and

(iii) for avoidance of doubt, it is clarified that nothing in the Scheme shall prevent each of the Amalgamating Company 1 and Amalgamating Company 2 from declaring and paying dividends whether interim or final to its shareholders; and

(iv) each of the Amalgamating Company 1 and Amalgamating Company 2 shall carry on its business, with reasonable diligence and business prudence and in the same manner as it had been doing hitherto and shall not undertake any additional financial commitments of any nature whatsoever, borrow any amounts or incur any other liabilities or expenditure, issue any additional guarantees, indemnities, letters of comfort or commitment either for itself or on behalf of its affiliates or associates or any third party, or sell, transfer, alienate, charge, mortgage or encumber or deal, in any of its properties/assets, except: (a) when the same is expressly provided in this Scheme; or (b) when the same is in the routine and ordinary course of business as carried on by it as on the date of filing of this Scheme in the NCLT; or (c) when a prior written consent of the Amalgamated Company has been obtained in this regard; and

(v) each of the Amalgamating Company 1 and Amalgamating Company 2 shall not vary or alter, except in the ordinary course of its business or pursuant to any pre-existing obligations undertaken prior to the date of approval of the Scheme by the Board of Directors of each of the Amalgamating Company 1 and Amalgamating Company 2, the terms and conditions of employment of any of its employees, nor shall it conclude settlement with its employees except with the written concurrence of the Amalgamated Company; and

(vi) each of the Amalgamating Company 1 and Amalgamating Company 2 shall not alter its equity capital structure either by fresh issue of shares or convertible securities (on a rights basis or by way of bonus shares or otherwise) or by any decrease, reduction, reclassification, sub-division, consolidation, re-organisation or in any other manner, except with the written concurrence of the Amalgamated Company.

Notwithstanding anything contained in this Scheme, subject to the Applicable Laws, the Board of Directors of the Amalgamated Company shall be entitled to consider, pursue, manage, undertake and conduct the business of the Amalgamated Company *inter-alia* including, any corporate actions, declaration of dividend, issue of securities and bonus shares, buy back of securities, reorganization, restructuring of its businesses, strategic acquisition or sale of any business, joint ventures, business combinations etc., as it may deem prudent and necessary in the interest of the Amalgamated Company or to give effect to any obligations under the Applicable Laws.

3.8.2. With effect from the Effective Date, the Amalgamated Company shall commence and carry on and shall be authorized to carry on the business of each of the Amalgamating Company 1 and Amalgamating Company 2.

3.9 DISSOLUTION OF THE AMALGAMATING COMPANIES

Upon this Scheme becoming effective, each of the Amalgamating Company 1 and Amalgamating Company 2 shall stand dissolved, without following the procedure of winding up and without any further act, instrument or deed.

PART-IV

CONSIDERATION, ACCOUNTING TREATMENT AND TAX TREATMENT OF THE AMALGAMATED COMPANY

4. CONSIDERATION

4.1. The Amalgamating Company 1 and Amalgamating Company 2 are wholly owned subsidiaries of the Amalgamated Company. Upon the Scheme becoming effective, no shares of the Amalgamated Company shall be allotted in lieu or exchange of the shares of each of Amalgamating Company 1 and Amalgamating Company 2. The entire share capital of the each of Amalgamating Company 1 and Amalgamating Company 2 shall be cancelled and extinguished. The investments in the shares of the Amalgamating Company 1 and Amalgamating Company 2, appearing in the books of account of Amalgamated Company shall, without any further act or deed, stands cancelled.

5. INCREASE IN AUTHORISED SHARE CAPITAL

5.1 As an integral part of the Scheme, upon the coming into effect of this Scheme, the authorised share capital of each of the Amalgamating Company 1 and Amalgamating Company 2, respectively, as on the Effective Date shall be reclassified/reorganised and combined with the authorised share capital of the Amalgamated Company and accordingly Clause V of the memorandum of association of the Amalgamated Company shall, upon this Scheme becoming effective, and without any further act, instrument or deed, be altered/substituted by the following clause:

> *"V. The Authorised Share Capital of the Company is Rs. 1,54,45,00,000/- (Rupees One Hundred and Fifty Four Crore and Forty Five Lakhs) divided into 47,22,50,000 Equity Shares of Rs. 2/- each, 35,00,00,000 8.5% cumulative redeemable preference shares of Rs. 1/- each and 25,00,000 redeemable Preference shares of Rs. 100/- each with the rights, privileges and conditions attaching thereto as provided by the requisitions of the Company for the time being with power to increase and reduce the capital of the Company and divide the shares in the Capital for the time being into several classes to attach thereto or in accordance with the Articles of the Company for the time being in force, and to modify, enlarge or abrogate any such right, privilege or conditions in such manner as may be permitted by the said Act or provided by the Articles of Association of the Company for the time being force."*

5.2 The fees or stamp duty, if any, paid by each of the respective Amalgamating Company 1 and Amalgamating Company 2 on the authorized share capital shall be deemed to have been so paid by the Amalgamated Company on the combined authorized share capital, and the Amalgamated Company shall not be required to pay any fee/ stamp duty for the increase of the authorized share capital. The authorised share capital of the Amalgamated Company will automatically stand increased to that effect by simply filing the requisite forms with the ROC and no separate procedure, act or instrument or deed shall be required to be followed/ undertaken by the Amalgamated Company.

5.3 The approval of this Scheme by the shareholders of the Amalgamated Company under Sections 230 to 232 of the Companies Act, whether at a meeting or otherwise, or any dispensation of the

same by the NCLT, shall be deemed to have been an approval under Section 13, Section 61 and Section 64 or any other applicable provisions under the Companies Act and no further resolution(s) would be required to be separately passed in this regard.

6. ACCOUNTING TREATMENT

6.1 Accounting Treatment in the Books of the Amalgamated Company

Notwithstanding anything else contained in the Scheme, the Amalgamated Company shall account for the amalgamation of the Amalgamating Companies in accordance with the Pooling of Interest Method of accounting as laid down in Appendix C of Indian Accounting Standard ("Ind AS") 103 (Business Combinations of entities under common control) notified under Section 133 of the Companies Act, 2013, read with the Companies (Indian Accounting Standard) Rules, 2015, as may be amended from time to time, in its books of accounts underlying its separate financial statements such that:

6.1.1 The Amalgamated Company shall record all the assets and liabilities, of the Amalgamating Companies vested in it pursuant to this Scheme, at the carrying values as appearing in the consolidated financial statements of the Amalgamated Company.

6.1.2 The identity of the reserves of the Amalgamating Companies shall be preserved and the Amalgamated Company shall record the reserves of the Amalgamating Companies in the same form and at the carrying amount as appearing in the consolidated financial statements of the Amalgamated Company.

6.1.3 Pursuant to the amalgamation of the Amalgamating Companies with the Amalgamated Company, the inter-company balances between the Amalgamated Company and/or the Amalgamating Companies, if any, appearing in the books of the Amalgamated Company and/or the Amalgamating Companies shall stand cancelled and there shall be no further obligation in that behalf.

6.1.4 The value of all the investments held by the Amalgamated Company in the Amalgamating Companies, represented by its equity share capital and securities premium, shall stand cancelled pursuant to amalgamation and there shall be no further obligation in that behalf.

6.1.5 The surplus, if any arising after taking the effect of 6.1.1, 6.1.2, and 6.1.4, after adjustment of 6.1.3 shall be transferred to Capital Reserve in the financial statements of the Amalgamated Company. The deficit, if any arising after taking the effect of clause 6.1.1, clause 6.1.2, clause 6.1.4, after adjustment of clause 6.1.3 and adjustment of previously existing credit balance in capital reserve, if any, shall be debited to Retained Earnings in the financial statements of the Amalgamated Company.

6.1.6 In case of any difference in accounting policy between the Amalgamating Companies and the Amalgamated Company, the accounting policies followed by the Amalgamated Company will prevail to ensure that the financial statements reflect the financial position based on consistent accounting policies.

6.1.7 Comparative financial information in the financial statements of the Amalgamated Company shall be restated for the accounting impact of merger of the Amalgamating Companies, as stated above, as if the merger had occurred from the beginning of the

comparative period. However, if the entities came under common control after that date, the prior period information shall be restated only from that date

6.1.9 For accounting purposes, the Scheme will be given effect to on the date when all substantial conditions for the transfer of the Amalgamating Companies are completed.

6.1.10 Any matter not dealt with in the Clause hereinabove shall be dealt with in accordance with the requirement of applicable Ind AS.

6.2 Accounting Treatment in the Books of the Amalgamating Companies

The accounting treatment to be followed by the Amalgamating Companies is not specifically addressed by any Indian Accounting Standard notified under Section 133 of the Companies Act. Hence, in line with the Generally Accepted Accounting Principles (GAAP), the Amalgamating Companies will stand dissolved without being wound up upon this Scheme becoming effective and all assets and liabilities as well as reserves shall be transferred to the Amalgamated Company, on a going concern basis. Therefore, there is no accounting treatment prescribed under this Scheme in the books of accounts of the Amalgamating Companies.

7. TAX MATTERS AND TAX TREATMENT

7.1 The provisions of this Scheme as they relate to the amalgamation of each of the Amalgamating Company 1 and Amalgamating Company 2 with the Amalgamated Company has been drawn up to comply with the conditions relating to 'amalgamation' as defined under Section 2(1B) of the Income Tax Act or corresponding provision of the Income Tax Act as may be applicable at the time this Scheme becomes effective. If any terms or provisions of the Scheme are found or interpreted to be inconsistent with the provisions of the said section of the Income Tax Act at a later date including resulting from an amendment of law or for any other reason whatsoever, the provisions of the said Section of the Income Tax Act shall prevail and the Scheme shall stand modified to the extent determined necessary to comply with Section 2(1B) of the Income Tax Act. Such modification will, however, not affect the other parts of the Scheme.

7.2 Upon the Scheme becoming effective, the Amalgamated Company is expressly permitted to revise its financial statements and returns along with prescribed forms, filings and annexures under the Income Tax Act, as may be applicable, Central Goods and Services Tax, State Goods and Services Tax, Integrated Goods and Services Tax and other tax laws and to claim refunds and/or credits for taxes paid by each of the Amalgamating Company 1 and Amalgamating Company 2, respectively, and to claim tax benefits, under the Income Tax Act and other tax laws etc. and for matters incidental thereto, if required to give effect to the provisions of this Scheme. The order of the Tribunal sanctioning this Scheme shall be deemed to be an order permitting the Amalgamated Company to prepare and/or revise its financial statements and books of accounts on and from the Appointed Date and no further act shall be required to be undertaken by the Amalgamated Company.

7.3 All tax assessment proceedings/appeals of whatsoever nature by or against the each of the Amalgamating Company 1 and Amalgamating Company 2, respectively, pending and/or arising at the Appointed Date and relating to the each of the Amalgamating Company 1 or Amalgamating Company shall be continued and/or enforced until the Effective Date by each of the Amalgamating Company 1 and Amalgamating Company 2, respectively. In the event of the Amalgamating Companies failing to continue or enforce any proceeding/appeal, the same may be continued or enforced by the Amalgamated Company, at the cost of the Amalgamated Company. As and from the Effective Date, the tax proceedings shall be continued and enforced by or against the Amalgamated

Company in the same manner and to the same extent as would or might have been continued and enforced by or against the Amalgamating Company 1 and Amalgamating Company 2, respectively.

7.4 Further, the aforementioned proceedings shall not abate or be discontinued nor be in any way prejudicially affected by reason of the amalgamation of each of Amalgamating Company 1 and Amalgamating Company 2 with the Amalgamated Company or anything contained in the Scheme.

7.5 All taxes (including but not limited to advance tax, self-assessment tax, regular tax, securities transaction tax, Foreign Tax Credit, tax deducted at source, tax collected at source, Value added tax, sales tax, service tax, customs duty, Central Goods and Services Tax, State Goods and Services Tax, Integrated Goods and Services Tax, etc.), including any interest, penalty, surcharge and/or cess, paid / payable by or refunded / refundable to Amalgamating Company 1 and Amalgamating Company 2, respectively, with effect from the Appointed Date, including all or any refunds or claims shall be treated as the tax liability or refunds/ claims/credits, etc. as the case may be, of the Amalgamated Company, and any tax incentives, advantages, privileges, accumulated losses under Income Tax Act allowance for unabsorbed depreciation under Income Tax Act carried forward allowance u/s. 35(4) of Income Tax Act including payment admissible on actual payment or on deduction of appropriate taxes or on payment of tax deducted at source such as under Sections 40, 40A, 43B, etc. of the Income Tax Act, exemptions, credits, deductions / holidays, remissions, reductions, service tax input credits, GST input credits, export benefits, , as would have been available to the Amalgamating Company 1 and Amalgamating Company 2, respectively, pursuant to this Scheme becoming effective, be available to the Amalgamated Company and the relevant authority shall be bound to transfer to the account of and give credit for the same to the Amalgamated Company upon coming into effect of this Scheme.

7.6 The Amalgamated Company shall also be permitted to claim refunds / credits in respect of any transaction between any of the Amalgamating Company 1 or Amalgamating Company 2 and the Amalgamated Company. Without prejudice to the generality of Clause 7.3 above, upon the Scheme becoming effective, the Amalgamated Company shall be permitted to revise, if it becomes necessary, its income tax returns and related withholding tax certificates, including withholding tax certificates, relating to transactions between any of the Amalgamating Company 1 or Amalgamating Company 2 and the Amalgamated Company, and to claim refunds, advance tax and withholding tax credits, foreign taxes and carry forward of accumulated losses, unabsorbed depreciation etc., pursuant to the provisions of this Scheme.

7.7 The taxes (including but not limited to advance tax, self-assessment tax, regular tax, securities transaction tax, tax deducted at source, tax collected at source, CGST, SGST, IGST), including any interest, penalty, surcharge and/or cess, if any, paid by any of the Amalgamating Company 1 or Amalgamating Company 2 under the Income Tax Act, Central Goods and Services Tax, State Goods and Services Tax, Integrated Goods and Services, or any other statute for the period commencing from the Appointed Date shall be deemed to be the taxes paid by the Amalgamated Company and credit for such taxes shall be allowed to the Amalgamated Company notwithstanding that certificates or challans for such taxes, are in the name of any of the Amalgamating Company 1 or Amalgamating Company 2 and not in the name of the Amalgamated Company.

PART V

GENERAL / RESIDUARY TERMS AND CONDITIONS

8. APPLICATION TO NCLT

8.1 The Amalgamated Company and Amalgamating Company 1 and Amalgamating Company 2 shall make all necessary applications and petitions to the NCLT for sanctioning this Scheme under Sections 230 to 232 and other applicable provisions of the Companies Act, and obtaining such other approvals, as required under Applicable Law.

8.2 The Amalgamated Company and the Amalgamating Company 1 and the Amalgamating Company 2, as the case may be, shall be entitled, pending the effectiveness of this Scheme, to apply to the appropriate authorities, as required, under any Applicable Law for such consents and approvals which may be required by the Amalgamating Companies and/or the Amalgamated Company to effect the transactions contemplated under the Scheme, subject to the terms as may be mutually agreed between the Amalgamated Company and Amalgamating Company 1 and Amalgamating Company 2.

9. CONDITIONALITY OF THE SCHEME

This Scheme is and shall be conditional upon and subject to:

(a) The approval by the requisite majority of the shareholders and/or creditors (as may be required and/or to the extent not dispensed with by the Appropriate Authority(ies)) of the Amalgamating Company 1 and Amalgamating Company 2 and Amalgamated Company, as required under Applicable Law(s);

(b) The sanctioning of this Scheme by the NCLT, whether with any modifications or amendments as NCLT may deem fit or otherwise;

(c) The filing of the certified copies of the orders of the NCLT with the ROC, National Capital Territory of Delhi and Haryana, by the Amalgamating Companies and Amalgamated Company, as the case may be;

(d) The requisite consents, no-objections and approvals of the concerned authority to the Scheme, on the terms acceptable to Amalgamated Company and Amalgamating Company 1 and Amalgamating Company 2; and

(e) Any other sanctions and orders as may be directed by the NCLT or any other Governmental Authority in respect of the Scheme.

10. MODIFICATION OR AMENDMENTS TO THE SCHEME

10.1 The Amalgamated Company, Amalgamating Company 1 and Amalgamating Company 2 (acting through their respective Boards of Directors) may assent to any modifications or amendments to this Scheme, which the NCLT and/or any other authorities may deem fit to direct or impose or which may otherwise be considered necessary or desirable for settling any question or doubt or difficulty that may arise for implementing and/or carrying out this Scheme. The Amalgamated

Company and Amalgamating Company 1 and Amalgamating Company 2 (acting through its respective Boards of Directors) be and is hereby authorized to take such steps and do all acts, deeds and things as may be necessary, desirable or proper to give effect to this Scheme and to resolve any doubts, difficulties or questions, whether by reason of any order of the NCLT or of any directive or order of any other authorities or otherwise howsoever arising out of, under or by virtue of this Scheme and/or any matters concerning or connected therewith.

10.2 If any issue arises as whether any to asset, liability and/or employee and pertains to the Amalgamating Company 1 and/or Amalgamating Company 2 and/or Amalgamated Company, or not under this Scheme, the same shall be decided by the Board of Directors of the Amalgamating Company 1 and/ or Amalgamating Company 2 and/or Amalgamated Company, as relevant, on the basis of relevant books of account and other evidence that they may deem relevant for said purposes.

11. WITHDRAWAL OF THE SCHEME

Subject to the approval of the NCLT or any other competent authority, if required, the Board of Directors of the Amalgamating Company 1 and Amalgamating Company 2 and Amalgamated Company shall be entitled to revoke, cancel, withdraw and declare this Scheme of no effect at any stage if, (a) any of the conditions that may be imposed by the NCLT or other authorities which the Amalgamating Company 1 and Amalgamating Company 2 and Amalgamated Company may find unacceptable for any reason; or (b) they are of view that the coming into effect of the Scheme could have adverse implications on the Amalgamating Company 1 and/ or Amalgamating Company 2 and/or Amalgamated Company and/or on account of changed business dynamics/commercial considerations.

12. EFFECT OF NON-RECEIPT OF APPROVALS

12.1 In the event that, (a) the Scheme is not sanctioned by the NCLT; (b) subject to Clause 12.2 below, any consents, approvals, permissions, resolutions, agreements, sanctions or conditions enumerated in the Scheme are not obtained or complied with; (c) the Scheme is revoked, canceled or withdrawn in accordance with Clause 11 above; or (d) for any other reason, the Scheme cannot be implemented, the Scheme shall become null and void, and the Amalgamated Company shall bear the costs, charges and expenses in connection with the Scheme unless otherwise mutually agreed between the Amalgamating Company 1 and Amalgamating Company 2 and Amalgamated Company.

12.2 The non – receipt of any sanctions or approvals for a particular asset or liability forming part of the Amalgamating Company 1 and/or Amalgamating Company 2 getting transferred pursuant to this Scheme, shall not affect the effectiveness of the respective section of the Scheme, if the Boards of Directors of the Amalgamating Company 1 and/or Amalgamating Company 2 and/or Amalgamated Company so decide. In the event of non – receipt of approval of any lender / creditor for the transfer of any liability, then at the option of the Boards of Directors of the Amalgamating Company 1 and Amalgamating Company 2, it may issue a security / recognize a liability in favour of the Amalgamated Company on the same terms. The transfer of such asset or liability shall become effective from the Appointed Date as and when the said requisite approvals are received or aforesaid liability being recognized / security being issued and the provisions of the Scheme shall apply appropriately to the said transfer / issue / recognition.

13. COSTS, CHARGES & EXPENSES

13.1 Except as otherwise expressly provided in the Scheme, the Amalgamating Company 1 and Amalgamating Company 2 and Amalgamated Company shall bear their own costs, charges and expenses in connection with the Scheme. The stamp duty, if any, in relation to the Scheme shall be borne by the Amalgamated Company.

13.2 Upon the Scheme becoming effective all taxes including duties, levies and all other expenses, if any (save as expressly otherwise agreed) of the Amalgamating Company 1 and Amalgamating Company 2 and Amalgamated Company arising out of or incurred in connection with and implementing this Scheme and matters incidental thereto shall be borne by the Amalgamated Company.

14. MISCELLANEOUS

14.1 If any part of this Scheme hereof is invalid, ruled illegal by any NCLT of competent jurisdiction, or unenforceable under present or future laws, then it is the intention of the Amalgamating Company 1 and Amalgamating Company 2 and Amalgamated Company that such Part shall be severable from the remainder of the Scheme, and the Scheme shall not be affected thereby, unless the deletion of such Part shall cause this Scheme to become materially adverse to Amalgamating Company 1 and Amalgamating Company 2 and Amalgamated Company in which case the Amalgamating Company 1 and Amalgamating Company 2 and Amalgamated Company shall attempt to bring about a modification in the Scheme, as will best preserve for the Amalgamating Company 1 and Amalgamating Company 2 and Amalgamated Company the benefits and obligations of the Scheme, including but not limited to such Part.

14.2 For the purpose of giving effect to the amalgamation order passed under sections 230 to 232 and other applicable provisions of the Companies Act in respect of the Scheme by NCLT, the Amalgamated Company shall, at any time pursuant to the order on the Scheme, be entitled to get the recordal of the change in the legal right(s) upon the amalgamation of the Amalgamating Company 1 and Amalgamating Company 2, in accordance with the provisions of sections 230 to 232 of the Companies Act.

CERTIFIED TRUE COPY OF THE RESOLUTION PASSED AT THE MEETING OF THE BOARD OF DIRECTORS OF NIIT INSTITUTE OF FINANCE BANKING & INSURANCE TRAINING LIMITED HELD ON OCTOBER 9, 2025

APPROVAL OF THE SCHEME OF AMALGAMATION OF NIIT INSTITUTE OF FINANCE BANKING & INSURANCE TRAINING LIMITED ("COMPANY"/ "AMALGAMATING COMPANY 1") AND RPS CONSULTING PRIVATE LIMITED ("AMALGAMATING COMPANY 2") WITH AND INTO NIIT LIMITED ("AMALGAMATED COMPANY"), AND THEIR RESPECTIVE SHAREHOLDERS UNDER SECTIONS 230 TO 232 AND OTHER APPLICABLE PROVISIONS, OF THE COMPANIES ACT, 2013 AND THE RULES MADE THEREUNDER

"**UNANIMOUSLY RESOLVED THAT** pursuant to the relevant provisions of the memorandum of association and articles of association of the Company and in accordance with the provisions of Sections 179 and 230 to 232 and all other applicable provisions of the Companies Act, 2013 ("**Act**") and the rules and regulations framed thereunder, the relevant provisions of the Income-tax Act, 1961 ("**IT Act**") and any other applicable laws, rules, circulars and regulations (including in each case any amendment(s), statutory modification(s) or re-enactment(s) for the time being in force), and subject to (a) the requisite approvals of the shareholders and creditors of NIIT Limited ("**Amalgamated Company"**), NIIT Institute of Finance Banking & Insurance Training Limited ("**Company**"/ "**Amalgamating Company 1**") and RPS Consulting Private Limited (**"Amalgamating Company 2"**) (collectively referred to as the "**Amalgamating Companies"**) and such other classes of persons as may be required under applicable laws (as may be required and/or to the extent not dispensed with by the relevant authorities), (b) the approval of the Hon'ble National Company Law Tribunal, Chandigarh Bench ("**NCLT**"), and (c) the approval of any other regulatory or statutory authorities as may be required, and subject to such further conditions and modifications as may be prescribed or imposed by the aforesaid authorities while granting such approvals and sanctions, the approval of the Board of Directors be and is hereby accorded to the scheme of amalgamation, the draft of which is placed before the Board of Directors, providing for the amalgamation of Amalgamating Company 1 and Amalgamating Company 2 with and into the Amalgamated Company (the "**Scheme**"), without any issuance or allotment of shares by the Amalgamated Company to the shareholders of Amalgamating Company 1 and Amalgamating Company 2, since both the Amalgamating Companies are wholly-owned subsidiaries of the Amalgamated Company, together with all matters consequential or otherwise integrally connected therewith.

RESOLVED FURTHER THAT the draft Scheme providing for the amalgamation of Amalgamating Company 1 and Amalgamating Company 2 with and into the Amalgamated Company with effect from April 01, 2026, being the Appointed Date, or such other date as may be decided by the Board of Directors of the Amalgamating Companies and the Amalgamated Company, or as may be approved by the NCLT, be and is hereby approved, subject to such changes, alterations and amendments as may be required or as may be considered necessary or expedient.

RESOLVED FURTHER THAT given the proposed amalgamation is between the Company and its wholly owned subsidiary companies, it is hereby noted that no shares shall be issued to the shareholders of the Amalgamating Companies and no consideration will be payable for the same and the entire share capital of the Amalgamating Companies held by Amalgamated Company and its nominees shall stand cancelled upon approval of the Scheme by NCLT.

Registered Office: Plot No. 85, Sector 32, Institutional Area, Gurugram - 122001, Haryana, India, Ph: +91(124) 4293000
Website: www.ifbi.com, Email id: contact@ifbi.com
CIN: U80903HR2006PLC132078

RESOLVED FURTHER THAT the following documents as placed before the Board of Directors, the contents of which are noted, accepted and taken on record:

a) Draft of the Scheme, duly initialed by the Chairman of the Board of Directors for the purpose of identification;
b) Letter dated October 9, 2025 issued by M/s S.R. Batliboi & Associates LLP, Chartered Accountants (Firm Registration No. 101049W/E300004), the statutory auditors of the Company, confirming that the accounting treatment in the books of the Amalgamating Company 1 in respect of its amalgamation with the Amalgamated Company is not required;
c) Other presentations, reports, documents and information pertaining to the draft Scheme made available to/ circulated to the Board of Directors.

RESOLVED FURTHER THAT in the opinion of the Board of Directors, the Scheme would be beneficial to the shareholders and other stakeholders of the Company, and the terms thereof are fair and reasonable.

RESOLVED FURTHER THAT the draft Scheme, a copy of which has been tabled at the meeting and initialled by the Chairman for the purpose of identification, be and is hereby approved.

RESOLVED FURTHER THAT necessary application(s) be made to the NCLT under the provisions of Sections 230 to 232 and other applicable provisions of the Act, *inter alia*, seeking necessary directions for holding meetings of the shareholders and creditors (as may be necessary) of the Company or for seeking dispensation of such meetings, and for the purpose of considering and approving the aforesaid draft Scheme by NCLT.

RESOLVED FURTHER THAT Mr. Vijay Kumar Thadani – Director, Mr. Parappil Rajendran – Director, Mr. Sanjeev Bansal - Chief Financial Officer and Ms. Arpita Bisaria Malhotra - Company Secretary of the Company (collectively, "**Authorised Persons**") be and are hereby severally authorized to take all actions and decide all matters relating to and / or incidental to the Scheme and/or necessary or desirable for giving effect to the Scheme, including but not limited:

(a) to finalize the Scheme and any other document and agreement required to implement the Scheme;

(b) to prepare, execute/ sign, and to file all applications, petitions, affidavit, pleadings, documents, reports, certificates etc. relating to the Scheme, before the NCLT or any statutory or regulatory authority including the Registrar of Companies, as may be necessary, in connection with the Scheme and / or in connection with the sanction thereof and to do all such acts, deeds or things as may be deemed necessary or desirable in connection therewith or incidental thereto;

(c) to file the Scheme and / or any other information / details / documents / instruments with the NCLT or any other body or regulatory authority or agency (including third parties) to obtain approval or sanction to any of the provisions of the Scheme or for giving effect thereto;

(d) to make any amendment/ alterations / changes / modifications to the Scheme, including such amendment/ alterations / changes / modifications as may be expedient or necessary, including for satisfying the requirements or conditions imposed by NCLT or any other regulatory authority, the shareholders, or the creditors of the Company;

(e) to withdraw the Scheme at any stage in case the changes or modifications required in the Scheme or the conditions imposed by the shareholders, the creditors or the NCLT and / or any other regulatory authority are not acceptable, or if the Scheme cannot be implemented otherwise, and to do all such acts, deeds and things considered necessary in connection therewith and incidental thereto;

(f) to seek approvals, consents, waivers, affidavits from the shareholders/ creditors of the Company for seeking directions as to dispensation with the meeting of such shareholders / creditors of the Company;

(g) to seek no-objection certificate from the lending scheduled commercial banks/ financial institutions, if any of the Company;

(h) to obtain approval/ no-objection certificate from the NCLT, and such other authorities and parties including the shareholders, creditors and lenders as may be considered necessary, for the approval and sanction of the Scheme;

(i) to represent the Company before any authorities and the NCLT in relation to any matter pertaining to the Scheme or delegate such authority to any other person by a valid power of attorney;

(j) to engage, hire, appoint, remove or change counsels/ advocates/ pleader/ solicitors/ valuers and other professionals to represent and act on behalf of the Company in the proceedings before the NCLT and/or the concerned authority in any matter related to the Scheme;

(k) to sign and execute vakalatnama wherever necessary, and sign and issue public advertisements and notices in connection with the Scheme;

(l) to affix the common seal of the Company, if any, in accordance with the provisions of the articles of association of the Company on any documents executed or furnished by the Company in connection with this resolution, and to send the common seal of the Company to other places, if so required, to facilitate execution of such documents in connection with the Scheme;

(m) to suitably inform, apply and/ or represent to various authorities, including but not limited to the sub-registrar of assurances, income tax authorities, goods and services tax authorities, employees' state insurance and provident fund authorities, telephone authorities, electricity authorities, postal authorities, and all other applicable authorities, agencies, etc., and/or to represent the Company before the said authorities and agencies and to sign and submit such applications, letters, forms, returns, memoranda, undertakings, declarations, deeds or documents and to take all required necessary steps and actions from time to time in the above connection, including registration of documents with the concerned sub-registrar of assurances;

(n) to incur expenses as may be necessary to give effect to the Scheme, including payment of fees to auditors, attorneys, counsels, advisors and other expenses;

(o) to settle any question or difficulty that may arise with regard to the implementation of the above Scheme, and to give effect to the above resolution

(p) to do all further acts, deeds, matters and things as may be necessary, proper or expedient to give effect to the Scheme and for matters connected therewith or incidental thereto; and

(q) to delegate all or any of the abovementioned powers to any other person/committee

RESOLVED FURTHER THAT pursuant to the provisions of section 232(2)(c) of the Act, the draft report of Board of Directors explaining the effect of the Scheme on each class of shareholders, key managerial personnel, promoter and non-promoter shareholders, be and is hereby approved and adopted and the aforesaid Authorised Persons be and are hereby severally authorised, on behalf of the Company to sign and modify the Report, if required.

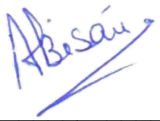
RESOLVED FURTHER THAT consent of the Board of Directors of the Company be and is hereby granted to approve and ratify all actions taken for the purpose of recommendation of the aforesaid

Scheme including engagement of consultants/ advisors/ auditors and other professionals and their fees, in connection with the said Scheme.

RESOLVED FURTHER THAT certified true copy of the aforesaid resolution duly signed by any of any one Director, Chief Financial Officer and Company Secretary of the Company, be furnished to whomsoever concerned."

Certified to be true copy,

For **NIIT INSTITUTE OF FINANCE BANKING & INSURANCE TRAINING LIMITED**



_____

Name: Arpita Bisaria Malhotra
Designation: Company Secretary
M. No. FCS: 9670

RPS CONSULTING PVT LTD

CERTIFIED TRUE COPY OF THE RESOLUTION PASSED AT THE MEETING OF THE BOARD OF DIRECTORS OF RPS CONSULTING PRIVATE LIMITED HELD ON OCTOBER 9, 2025

APPROVAL OF THE SCHEME OF AMALGAMATION OF NIIT INSTITUTE OF FINANCE BANKING & INSURANCE TRAINING LIMITED ("AMALGAMATING COMPANY 1") AND RPS CONSULTING PRIVATE LIMITED ("COMPANY"/ "AMALGAMATING COMPANY 2") WITH AND INTO NIIT LIMITED ("AMALGAMATED COMPANY"), AND THEIR RESPECTIVE SHAREHOLDERS UNDER SECTIONS 230 TO 232 AND OTHER APPLICABLE PROVISIONS, OF THE COMPANIES ACT, 2013 AND THE RULES MADE THEREUNDER

"**UNANIMOUSLY RESOLVED THAT** pursuant to the relevant provisions of the memorandum of association and articles of association of the Company and in accordance with the provisions of Sections 179 and 230 to 232 and all other applicable provisions of the Companies Act, 2013 ("**Act**") and the rules and regulations framed thereunder, the relevant provisions of the Income-tax Act, 1961 ("**IT Act**") and any other applicable laws, rules, circulars and regulations (including in each case any amendment(s), statutory modification(s) or re-enactment(s) for the time being in force), and subject to (a) the requisite approvals of the shareholders and creditors of NIIT Limited ("**Amalgamated Company"**), NIIT Institute of Finance Banking & Insurance Training Limited ("**Amalgamating Company 1**") and RPS Consulting Private Limited ("**Company**"/ **"Amalgamating Company 2"**) (collectively referred to as the "**Amalgamating Companies"**) and such other classes of persons as may be required under applicable laws (as may be required and/or to the extent not dispensed with by the relevant authorities), (b) the approval of the Hon'ble National Company Law Tribunal, Chandigarh Bench ("**NCLT**"), and (c) the approval of any other regulatory or statutory authorities as may be required, and subject to such further conditions and modifications as may be prescribed or imposed by the aforesaid authorities while granting such approvals and sanctions, the approval of the Board of Directors be and is hereby accorded to the scheme of amalgamation, the draft of which is placed before the Board of Directors, providing for the amalgamation of Amalgamating Company 1 and Amalgamating Company 2 with and into the Amalgamated Company (the "**Scheme**"), without any issuance or allotment of shares by the Amalgamated Company to the shareholders of Amalgamating Company 1 and Amalgamating Company 2, since both the Amalgamating Companies are wholly-owned subsidiaries of the Amalgamated Company, together with all matters consequential or otherwise integrally connected therewith.

RESOLVED FURTHER THAT the draft Scheme providing for the amalgamation of Amalgamating Company 1 and Amalgamating Company 2 with and into the Amalgamated Company with effect from April 01, 2026, being the Appointed Date, or such other date as may be decided by the Board of Directors of the Amalgamating Companies and the Amalgamated Company, or as may be approved by the NCLT, be and is hereby approved, subject to such changes, alterations and amendments as may be required or as may be considered necessary or expedient.

RESOLVED FURTHER THAT given the proposed amalgamation is between the Company and its wholly owned subsidiary companies, it is hereby noted that no shares shall be issued to the shareholders of the Amalgamating Companies and no consideration will be payable for the same and the entire share capital of the Amalgamating Companies held by Amalgamated Company and its nominees shall stand cancelled upon approval of the Scheme by NCLT.

RESOLVED FURTHER THAT the following documents as placed before the Board of Directors, the contents of which are noted, accepted and taken on record:

a) Draft of the Scheme, duly initialed by the Chairman of the Board of Directors for the purpose of identification;
b) Letter dated October 9, 2025 issued by M/s S.R. Batliboi & Associates LLP, Chartered Accountants (Firm Registration No. 101049W/E300004), the statutory auditors of the Company, confirming that the accounting treatment in the books of the Amalgamating Company 2 in respect of its amalgamation with the Amalgamated Company is not required;
c) Other presentations, reports, documents and information pertaining to the draft Scheme made available to/ circulated to the Board of Directors.

RESOLVED FURTHER THAT in the opinion of the Board of Directors, the Scheme would be beneficial to the shareholders and other stakeholders of the Company, and the terms thereof are fair and reasonable.

RESOLVED FURTHER THAT the draft Scheme, a copy of which has been tabled at the meeting and initialled by the Chairman for the purpose of identification, be and is hereby approved.

RESOLVED FURTHER THAT necessary application(s) be made to the NCLT under the provisions of Sections 230 to 232 and other applicable provisions of the Act, *inter alia*, seeking necessary directions for holding meetings of the shareholders and creditors (as may be necessary) of the Company or for seeking dispensation of such meetings, and for the purpose of considering and approving the aforesaid draft Scheme by NCLT.

RESOLVED FURTHER THAT Mr. Vijay Kumar Thadani – Director, Mr. Parappil Rajendran – Director, Mr. Umesh Kumar Gola – Finance Head of the Company (collectively, "**Authorised Persons**") be and are hereby severally authorized to take all actions and decide all matters relating to and / or incidental to the Scheme and/or necessary or desirable for giving effect to the Scheme, including but not limited:

(a) to finalize the Scheme and any other document and agreement required to implement the Scheme;

(b) to prepare, execute/ sign, and to file all applications, petitions, affidavit, pleadings, documents, reports, certificates etc. relating to the Scheme, before the NCLT or any statutory or regulatory authority including the Registrar of Companies, as may be necessary, in connection with the Scheme and / or in connection with the sanction thereof

and to do all such acts, deeds or things as may be deemed necessary or desirable in connection therewith or incidental thereto;

(c) to file the Scheme and / or any other information / details / documents / instruments with the NCLT or any other body or regulatory authority or agency (including third parties) to obtain approval or sanction to any of the provisions of the Scheme or for giving effect thereto;

(d) to make any amendment/ alterations / changes / modifications to the Scheme, including such amendment/ alterations / changes / modifications as may be expedient or necessary, including for satisfying the requirements or conditions imposed by NCLT or any other regulatory authority, the shareholders, or the creditors of the Company;

(e) to withdraw the Scheme at any stage in case the changes or modifications required in the Scheme or the conditions imposed by the shareholders, the creditors or the NCLT and / or any other regulatory authority are not acceptable, or if the Scheme cannot be implemented otherwise, and to do all such acts, deeds and things considered necessary in connection therewith and incidental thereto;

(f) to seek approvals, consents, waivers, affidavits from the shareholders/ creditors of the Company for seeking directions as to dispensation with the meeting of such shareholders / creditors of the Company;

(g) to seek no-objection certificate from the lending scheduled commercial banks/ financial institutions, if any of the Company;

(h) to obtain approval/ no-objection certificate from the NCLT, and such other authorities and parties including the shareholders, creditors and lenders as may be considered necessary, for the approval and sanction of the Scheme;

(i) to represent the Company before any authorities and the NCLT in relation to any matter pertaining to the Scheme or delegate such authority to any other person by a valid power of attorney;

(j) to engage, hire, appoint, remove or change counsels/ advocates/ pleader/ solicitors/ valuers and other professionals to represent and act on behalf of the Company in the proceedings before the NCLT and/or the concerned authority in any matter related to the Scheme;

(k) to sign and execute vakalatnama wherever necessary, and sign and issue public advertisements and notices in connection with the Scheme;

(l) to affix the common seal of the Company, if any, in accordance with the provisions of the articles of association of the Company on any documents executed or furnished by the Company in connection with this resolution, and to send the common seal of the Company to other places, if so required, to facilitate execution of such documents in connection with the Scheme;

(m) to suitably inform, apply and/ or represent to various authorities, including but not limited to the sub-registrar of assurances, income tax authorities, goods and services tax authorities, employees' state insurance and provident fund authorities, telephone authorities, electricity authorities, postal authorities, and all other applicable authorities, agencies, etc., and/or to represent the Company before the said authorities and agencies and to sign and submit such applications, letters, forms, returns, memoranda, undertakings, declarations, deeds or documents and to take all required necessary steps and actions from time to time in the above connection, including registration of documents with the concerned sub-registrar of assurances;

(n) to incur expenses as may be necessary to give effect to the Scheme, including payment of fees to auditors, attorneys, counsels, advisors and other expenses;

(o) to settle any question or difficulty that may arise with regard to the implementation of the above Scheme, and to give effect to the above resolution

(p) to do all further acts, deeds, matters and things as may be necessary, proper or expedient to give effect to the Scheme and for matters connected therewith or incidental thereto; and

(q) to delegate all or any of the abovementioned powers to any other person/committee

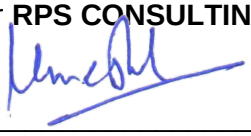
RESOLVED FURTHER THAT pursuant to the provisions of section 232(2)(c) of the Act, the draft report of Board of Directors explaining the effect of the Scheme on each class of shareholders, key managerial personnel, promoter and non-promoter shareholders, be and is hereby approved and adopted and the aforesaid Authorised Persons be and are hereby severally authorised, on behalf of the Company to sign and modify the Report, if required.

RESOLVED FURTHER THAT consent of the Board of Directors of the Company be and is hereby granted to approve and ratify all actions taken for the purpose of recommendation of the aforesaid Scheme including engagement of consultants/ advisors/ auditors and other professionals and their fees, in connection with the said Scheme.

RESOLVED FURTHER THAT certified true copy of the aforesaid resolution duly signed by any of any one Director and Finance Head of the Company, be furnished to whomsoever concerned."

Certified to be true copy,

For **RPS CONSULTING PRIVATE LIMITED**



Name: Umesh Kumar Gola
Designation: Finance Head

NIIT Limited
Registered Office:
Plot No 85, Sector 32,
Institutional Area,
Gurugram 122 001,
(Haryana) India
Tel:+91 (124) 4293000
Fax:+91 (124) 4293333
Email: info@niit.com

CIN: L74899HR1981PLC107123

www.niit.com

CERTIFIED TRUE COPY OF THE RESOLUTION PASSED AT THE MEETING OF THE BOARD OF DIRECTORS OF NIIT LIMITED HELD ON OCTOBER 9, 2025

APPROVAL OF THE SCHEME OF AMALGAMATION OF NIIT INSTITUTE OF FINANCE BANKING & INSURANCE TRAINING LIMITED ("AMALGAMATING COMPANY 1") AND RPS CONSULTING PRIVATE LIMITED ("AMALGAMATING COMPANY 2") WITH AND INTO NIIT LIMITED ("COMPANY"/ "AMALGAMATED COMPANY"), AND THEIR RESPECTIVE SHAREHOLDERS UNDER SECTIONS 230 TO 232 AND OTHER APPLICABLE PROVISIONS, OF THE COMPANIES ACT, 2013 AND THE RULES MADE THEREUNDER

"**UNANIMOUSLY RESOLVED THAT** pursuant to the relevant provisions of the memorandum of association and articles of association of the Company and in accordance with the provisions of Sections 179 and 230 to 232 and all other applicable provisions of the Companies Act, 2013 ("**Act**") and the rules and regulations framed thereunder, the relevant provisions of the Income-tax Act, 1961 ("**IT Act**"), and applicable provisions of the Securities and Exchange Board of India (Listing Obligations and Disclosure Requirements) Regulations, 2015 ("**Listing Regulations**"), the master circular bearing no. SEBI/HO/CFD/POD-2/P/CIR/2023/93 dated June 20, 2023 on (i) Scheme of Arrangement by Listed Entities and (ii) Relaxation under Sub-rule (7) of Rule 19 of the Securities Contracts (Regulation) Rules, 1957, and any other circulars issued by the Securities and Exchange Board of India ("**SEBI**") (the "**SEBI Master Circular**"), together with any other applicable laws, rules, circulars and regulations (including in each case any amendment(s), statutory modification(s) or re-enactment(s) for the time being in force), and pursuant to the recommendations of the Audit Committee of the Company and subject to (a) the requisite approvals of the shareholders and creditors of NIIT Limited ("**Amalgamated Company"/ "Company**"), NIIT Institute of Finance Banking & Insurance Training Limited ("**Amalgamating Company 1**") and RPS Consulting Private Limited ("**Amalgamating Company 2"**) (collectively referred to as the "**Amalgamating Companies"**) and such other classes of persons as may be required under applicable laws (as may be required and/or to the extent not dispensed with by the relevant authorities) (b) the approval of the Hon'ble National Company Law Tribunal, Chandigarh Bench ("**NCLT**"), and (c) the approval of any other regulatory or statutory authorities as may be required, and subject to such further conditions and modifications as may be prescribed or imposed by the aforesaid authorities while granting such approvals and sanctions, the approval of the Board of Directors be and is hereby accorded to the scheme of amalgamation, the draft of which is placed before the Board of Directors, providing for the amalgamation of Amalgamating Company 1 and Amalgamating Company 2 with and into the Amalgamated Company (the "**Scheme**"), without any issuance or allotment of shares by the Amalgamated Company to the shareholders of Amalgamating Company 1 and Amalgamating Company 2, since both the Amalgamating Companies are wholly-owned subsidiaries of the Amalgamated Company, together with all matters consequential or otherwise integrally connected therewith.

RESOLVED FURTHER THAT the draft Scheme providing for the amalgamation of Amalgamating Company 1 and Amalgamating Company 2 with and into the Amalgamated Company with effect from April 01, 2026, being the Appointed Date, or such other date as may be decided by the Board of Directors of the Amalgamating Companies and the Amalgamated Company, or as may be approved by the NCLT, be and is hereby approved, subject to such changes, alterations and amendments as may be required or as may be considered necessary or expedient.

RESOLVED FURTHER THAT given the proposed amalgamation is between the Company and its wholly owned subsidiary companies, it is hereby noted that no shares shall be issued to the shareholders of the Amalgamating Companies and no consideration will be payable for the same and the entire share capital of the Amalgamating Companies held by Amalgamated Company and its nominees shall stand cancelled upon approval of the Scheme by NCLT.

RESOLVED FURTHER THAT the following documents as placed before the Board of Directors, the contents of which are noted, accepted and taken on record:

a) Draft of the Scheme, duly initialed by the Chairman of the Board of Directors for the purpose of identification;

b) Auditors' Certificate dated October 9, 2025 issued by M/s S.R. Batliboi & Associates LLP, Chartered Accountants (Firm Registration No. 101049W/E300004), the statutory auditors of the Company, certifying that the accounting treatment in the draft Scheme is in accordance with applicable accounting standards and other generally accepted accounting principles;

c) Other presentations, reports, documents and information pertaining to the draft Scheme made available to/ circulated to the Board of Directors.

RESOLVED FURTHER THAT in the opinion of the Board of Directors, the Scheme would be beneficial to the shareholders and other stakeholders of the Company, and the terms thereof are fair and reasonable.

RESOLVED FURTHER THAT the draft Scheme, a copy of which has been tabled at the meeting and initialled by the Chairman for the purpose of identification, be and is hereby approved.

RESOLVED FURTHER THAT necessary application(s) be made to the NCLT under the provisions of Sections 230 to 232 and other applicable provisions of the Act, *inter alia*, seeking necessary directions for holding meetings of the shareholders and creditors (as may be necessary) of the Company or for seeking dispensation of such meetings, and for the purpose of considering and approving the aforesaid draft Scheme by NCLT.

RESOLVED FURTHER THAT Mr. Vijay Kumar Thadani – Vice-Chairman & Managing Director, Mr. Pankaj Prabhakar Jathar - Chief Executive Officer, Mr. Sanjeev Bansal - Chief Financial Officer and Ms. Arpita Bisaria Malhotra - Company Secretary of the Company (collectively, "**Authorised Persons**") be and are hereby severally authorized to take all actions and decide all matters relating to and / or incidental to the Scheme and/or necessary or desirable for giving effect to the Scheme, including but not limited:

(a) to finalize the Scheme and any other document and agreement required to implement the Scheme;

(b) to prepare, execute/ sign, and to file all applications, petitions, affidavit, pleadings, documents, reports, certificates etc. relating to the Scheme, before the NCLT or any statutory or regulatory authority including the Registrar of Companies, as may be necessary, in connection with the Scheme and / or in connection with the sanction thereof and to do all such acts, deeds or things as may be deemed necessary or desirable in connection therewith or incidental thereto;

(c) to file the Scheme and / or any other information / details / documents / instruments with the NCLT or any other body or regulatory authority or agency (including third parties) to obtain approval or sanction to any of the provisions of the Scheme or for giving effect thereto;

(d) to make any amendment/ alterations / changes / modifications to the Scheme, including such amendment/ alterations / changes / modifications as may be expedient or necessary, including for satisfying the requirements or conditions imposed by NCLT or any other regulatory authority, the shareholders, or the creditors of the Company;

(e) to withdraw the Scheme at any stage in case the changes or modifications required in the Scheme or the conditions imposed by the shareholders, the creditors or the NCLT and / or any other regulatory authority are not acceptable, or if the Scheme cannot be implemented otherwise, and to do all such acts, deeds and things considered necessary in connection therewith and incidental thereto;

(f) to seek approvals, consents, waivers, affidavits from the shareholders/ creditors of the Company for seeking directions as to dispensation with the meeting of such shareholders / creditors of the Company;

(g) to seek no-objection certificate from the lending scheduled commercial banks/ financial institutions, if any of the Company;

(h) to obtain approval/ no-objection certificate from the NCLT, and such other authorities and parties including the shareholders, creditors and lenders as may be considered necessary, for the approval and sanction of the Scheme;

(i) to represent the Company before any authorities and the NCLT in relation to any matter pertaining to the Scheme or delegate such authority to any other person by a valid power of attorney;

(j) to engage, hire, appoint, remove or change counsels/ advocates/ pleader/ solicitors/ valuers and other professionals to represent and act on behalf of the Company in the proceedings before the NCLT and/or the concerned authority in any matter related to the Scheme;

(k) to sign and execute vakalatnama wherever necessary, and sign and issue public advertisements and notices in connection with the Scheme;

(l) to affix the common seal of the Company, if any, in accordance with the provisions of the articles of association of the Company on any documents executed or furnished by the Company in connection with this resolution, and to send the common seal of the Company to other places, if so required, to facilitate execution of such documents in connection with the Scheme;

(m) to suitably inform, apply and/ or represent to various authorities, including but not limited to the sub-registrar of assurances, income tax authorities, goods and services tax authorities, employees' state insurance and provident fund authorities, telephone authorities, electricity authorities, postal authorities, and all other applicable authorities, agencies, etc., and/or to represent the Company before the said authorities and agencies and to sign and submit such applications, letters, forms, returns, memoranda, undertakings, declarations, deeds or documents and to take all required necessary steps and actions from time to time in the above connection, including registration of documents with the concerned sub-registrar of assurances;

(n) to incur expenses as may be necessary to give effect to the Scheme, including payment of fees to auditors, attorneys, counsels, advisors and other expenses;

(o) to settle any question or difficulty that may arise with regard to the implementation of the above Scheme, and to give effect to the above resolution;

(p) to do all further acts, deeds, matters and things as may be necessary, proper or expedient to give effect to the Scheme and for matters connected therewith or incidental thereto; and

(q) to delegate all or any of the abovementioned powers to any other person/committee

RESOLVED FURTHER THAT pursuant to the provisions of section 232(2)(c) of the Act, the draft report of Board of Directors explaining the effect of the Scheme on each class of shareholders, key managerial personnel, promoter and non-promoter shareholders, be and is hereby approved and adopted and the aforesaid Authorised Persons be and are hereby severally authorised, on behalf of the Company to sign and modify the Report, if required.

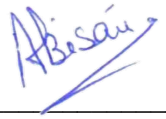
RESOLVED FURTHER THAT the consent of the Board of Directors be and is hereby accorded to authorise the Company, in its capacity as the equity shareholder and/or as creditor of each of the Amalgamating Company 1 and Amalgamating Company 2, to convey its consent, support and no objection to any application for seeking dispensation of meeting of the equity shareholders and/or creditors of each of Amalgamating Company 1 and Amalgamating Company 2 for approving the Scheme as may be filed with the NCLT and/ or any person or other regulatory authority as may be relevant and that Mr. Vijay Kumar Thadani – Vice-Chairman & Managing Director, Mr. Pankaj Prabhakar Jathar - Chief Executive Officer, Mr. Sanjeev Bansal - Chief Financial Officer and Ms. Arpita Bisaria Malhotra - Company Secretary of the Company be and are hereby severally authorized to take all actions, deeds, matters and things as may be necessary, proper or expedient to give effect to this resolution and for matters connected therewith or incidental thereto, including but not limited to executing necessary documents, affidavits or making appropriate filings with the NCLT, jurisdictional Registrar of Companies or any other regulatory authority, if so required.

RESOLVED FURTHER THAT consent of the Board of Directors of the Company be and is hereby granted to approve and ratify all actions taken for the purpose of recommendation of the aforesaid Scheme including engagement of consultants/ advisors/ auditors and other professionals and their fees, in connection with the said Scheme.

RESOLVED FURTHER THAT certified true copy of the aforesaid resolution duly signed by any of any one Director, Chief Financial Officer and Company Secretary of the Company, be furnished to whomsoever concerned."

Certified to be true copy,

For **NIIT LIMITED**



Name: Arpita Bisaria Malhotra
Designation: Company Secretary
M. No. FCS: 9670